



CHAPTER 7.

An Act to prevent claims for prize salvage being made or relied upon without the consent of the Admiralty or the Secretary of State. [1st March 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) No proceedings to enforce a claim for services rendered in retaking a ship, aircraft or goods taken by an enemy shall be instituted after the commencement of this Act without the consent of the Admiralty or the Secretary of State. Restriction on claims for prize salvage.

(2) Where any such proceedings have been instituted after the twenty-fifth day of January, nineteen hundred and forty-four and before the commencement of this Act and the claim therein has not been adjudicated upon before the commencement of this Act, it shall be dismissed unless the Admiralty or the Secretary of State consents to the prosecution of the claim before the expiration of two months from the commencement of this Act or before the claim is adjudicated upon, whichever first occurs.

(3) In any proceedings instituted after the commencement of this Act otherwise than to enforce such a claim as aforesaid, no such claim shall be made, or shall be relied upon by way of defence or otherwise, without the consent of the Admiralty or the Secretary of State.

(4) Evidence of the consent required by this section may be given by means of a document purporting to give the consent and to be signed on behalf of the Admiralty or the Secretary of State.

27 & 28 Vict.
c. 25.
2 & 3 Geo. 6.
c. 85.

Extent of
Act.

(5) In this section the expressions "ship" and "goods" have the same meaning as in the Naval Prize Act, 1864, as amended by the Prize Act, 1939.

2.—(1) This Act extends to the following countries and territories, that is to say—

- (a) the United Kingdom, the Channel Islands and the Isle of Man ;
- (b) British India and British Burma ;
- (c) Newfoundland, and every colony except a colony administered by His Majesty's Government in a Dominion ;
- (d) every British protectorate ;
- (e) every territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty and is being exercised by His Majesty's Government in the United Kingdom ;

and also extends (in so far as His Majesty has jurisdiction therein) to any other country or territory being a foreign country or territory in which for the time being His Majesty has jurisdiction and not being a country or territory administered by His Majesty's Government in a Dominion.

(2) This Act shall, in its application to any country or territory outside the United Kingdom have effect subject to such adaptations and modifications, if any, as may be prescribed by or under an Order of His Majesty in Council ; and any such Order may be varied or revoked by a subsequent Order of His Majesty in Council.

Short title
and citation.

3. This Act may be cited as the Prize Salvage Act, 1944, and may be cited together with the Prize Acts, 1864 to 1939, as the Prize Acts, 1864 to 1944.

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